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ENDORSED — FILED

Superior Court of California

County of Los Angeles

MAY 20, 2026

Sherri R. Carter, Executive Officer/Clerk

By: A. Delgado, Deputy

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES

CENTRAL DISTRICT — STANLEY MOSK COURTHOUSE

YOLANDA REYES,

) **Case No. 26STCV04127**

)

Plaintiff,

) **COMPLAINT FOR DAMAGES**

)

v.

) 1. Negligence

) 2. Negligence Per Se

ALDER CREEK TRANSIT DISTRICT;

) (Veh. Code § 23153)

RAYMOND T. KEELER; and

) 3. Respondeat Superior

DOES 1 through 50, inclusive,

) (Gov. Code § 815.2)

)

Defendants.

) **DEMAND FOR JURY TRIAL**

)

1 Plaintiff YOLANDA REYES, by and through her undersigned counsel, alleges as follows:

2
3 **PARTIES**

4
5 1. Plaintiff YOLANDA REYES ("Plaintiff" or "Reyes") is, and at all times relevant hereto
6 was, an individual residing in the City of Rivergate, County of Los Angeles, State of
7 California.

8
9 2. Defendant ALDER CREEK TRANSIT DISTRICT ("ACTD" or "the District") is, and at
10 all times relevant hereto was, a California public transit special district and a "public
11 entity" within the meaning of Government Code section 811.2, organized and operating in
12 the County of Los Angeles, with its principal place of business at 1200 Alder Creek Way,
13 Rivergate, California 91766. At all relevant times, ACTD owned, operated, maintained,
14 dispatched, and controlled the transit bus involved in the collision described below, and
15 employed the individual defendant identified in paragraph 3.

16
17 3. Defendant RAYMOND T. KEELER ("Keeler") is, and at all times relevant hereto was, an
18 individual residing in the County of Los Angeles, State of California, and an employee of
19 ACTD assigned as a bus operator on ACTD's overnight ("Owl") service. At all times
20 relevant hereto, Keeler was operating an ACTD transit bus during the course and scope of
21 his employment with ACTD.

22
23 4. The true names and capacities, whether individual, corporate, associate, or otherwise, of
24 Defendants DOES 1 through 50, inclusive, are unknown to Plaintiff, who therefore sues
25 said Defendants by such fictitious names. Plaintiff will seek leave of Court to amend this
26 Complaint to allege their true names and capacities when the same have been ascertained.
27 Plaintiff is informed and believes, and thereon alleges, that each of the fictitiously named
28 Defendants is legally responsible in some manner for the events and occurrences alleged

herein and for the injuries and damages proximately caused thereby.

5. Plaintiff is informed and believes, and thereon alleges, that at all times relevant hereto, each Defendant, including DOES 1 through 50, was the agent, servant, employee, joint venturer, partner, co-conspirator, and/or alter ego of each of the remaining Defendants, and in doing the acts and omissions alleged herein was acting within the course, scope, and authority of such agency, employment, joint venture, partnership, conspiracy, and/or alter ego relationship, and with the permission, consent, authorization, and/or ratification of each of the remaining Defendants.

JURISDICTION AND VENUE

6. This Court has subject-matter jurisdiction over this action pursuant to Article VI, section 10 of the California Constitution and Code of Civil Procedure section 410.10. The amount in controversy exceeds the jurisdictional minimum of this Court, and this action is an unlimited civil case.
7. Venue is proper in this Court under Code of Civil Procedure sections 394 and 395 because Defendant ACTD is a local public entity of the County of Los Angeles, the individual Defendant resides in Los Angeles County, and the acts and omissions giving rise to this action, and the injuries suffered by Plaintiff, occurred wholly within the County of Los Angeles.

GENERAL ALLEGATIONS

8. On October 18, 2025, at approximately 2:05 a.m., Plaintiff YOLANDA REYES was lawfully present as a pedestrian at or near a designated transit stop located on South Main Street just north of Third Avenue, in the downtown area of the City of Rivergate, County

of Los Angeles, California (the "Collision Location").

9. At all times relevant to the events of October 18, 2025, Defendant Keeler was employed by Defendant ACTD as a bus operator, badge number 4417, and was assigned to operate ACTD Bus No. 4177 on the authorized overnight "Owl" fixed route designated Route 512, block identifier 512-OWL, which is one of the six Owl routes authorized to operate during ACTD's 23:00–05:00 service window. Keeler had clocked in for his shift at 22:00 on October 17, 2025.
10. At all times relevant to the events of October 18, 2025, Keeler was performing the duties of his employment for ACTD, transporting fare-paying passengers along an ACTD-authorized route during scheduled Owl service. He was, at all times during the acts and omissions alleged herein, acting within the course and scope of his employment with ACTD.
11. Approximately at 2:05 a.m. on October 18, 2025, while operating ACTD Bus No. 4177 in the southbound direction on South Main Street, and while under the influence of alcohol, Keeler lost consciousness at the wheel of the bus. The bus departed its lane of travel and struck a street-light standard owned and maintained by the City of Rivergate, extinguishing the overhead illumination at the intersection. Immediately thereafter, the bus continued forward and struck Plaintiff, who was standing at the adjacent transit stop and who had no opportunity to avoid the impact.
12. A certified evidentiary blood specimen was drawn from Keeler by qualified medical personnel at approximately 3:10 a.m. on October 18, 2025, under a proper chain of custody, and was analyzed by the Los Angeles County Sheriff's Department Scientific Services Bureau — Crime Laboratory. That certified analysis established Keeler's blood-alcohol concentration at 0.14% by weight, well in excess of the legal limit of

0.08%.

13. Following the collision, Keeler was arrested at the scene by the Rivergate Police Department at approximately 2:35 a.m. on October 18, 2025, on suspicion of driving under the influence causing injury. Keeler was thereafter criminally charged in the Superior Court of California, County of Los Angeles (Norwalk Courthouse) with a violation of Vehicle Code section 23153(a), and on April 2, 2026, entered a plea of no contest to that charge (Case No. NA123456-01).

14. As the direct and proximate result of the collision, Plaintiff sustained catastrophic bodily injuries, including but not limited to severe traumatic brain injury, multiple orthopedic fractures, internal injuries, and other severe and permanent injuries. Plaintiff was airlifted from the scene to Rivergate Regional Trauma Center, where she underwent emergency surgical intervention and required extended hospitalization in intensive-care and acute-care settings. On December 22, 2025, Plaintiff was discharged from acute care to inpatient neurological rehabilitation at the Alder Creek Neuro-Rehabilitation Institute, where her recovery continues.

15. As a direct and proximate result of the acts and omissions of Defendants, and each of them, Plaintiff has sustained, and will continue to sustain, injuries and damages including, without limitation, past and future medical, hospital, rehabilitative, and attendant-care expenses; past and future lost wages and diminution of earning capacity; permanent physical impairment; and general damages for past and future physical pain, mental suffering, emotional distress, loss of enjoyment of life, disfigurement, and inconvenience, all in amounts to be proven at trial.

FIRST CAUSE OF ACTION

Negligence

(Against Defendant Keeler and DOES 1–50)

16. Plaintiff incorporates by reference each and every allegation contained in paragraphs 1 through 15 above as though fully set forth herein.

17. At all times relevant hereto, Defendant Keeler owed to Plaintiff, and to all other persons lawfully present on and along the public streets and sidewalks of the City of Rivergate, a duty to exercise reasonable care in the operation of a motor vehicle, and in particular in the operation of a mass-transit bus, so as not to cause foreseeable injury to pedestrians and other users of the roadway.

18. Defendant Keeler breached that duty by, among other things: (a) operating an ACTD transit bus while under the influence of alcohol; (b) failing to maintain a proper lookout; (c) failing to maintain control of the vehicle; (d) failing to keep the vehicle within its designated lane of travel; (e) operating the vehicle at a speed unreasonable under the conditions then and there existing; and (f) losing consciousness at the wheel of a passenger-carrying commercial motor vehicle in the ordinary discharge of his duties.

19. As a direct and proximate result of the negligence of Defendant Keeler, and each of the DOE Defendants, Plaintiff suffered the injuries and damages set forth in paragraphs 14 and 15 above, in amounts to be proven at trial.

SECOND CAUSE OF ACTION

Negligence Per Se — Vehicle Code § 23153

(Against Defendant Keeler and DOES 1–50)

20. Plaintiff incorporates by reference each and every allegation contained in paragraphs 1 through 19 above as though fully set forth herein.

- 1
- 2 21. California Vehicle Code section 23153(a) prohibits any person, while under the influence
- 3 of any alcoholic beverage, from driving a vehicle and concurrently doing any act
- 4 forbidden by law, or neglecting any duty imposed by law in the driving of such vehicle,
- 5 which act or neglect proximately causes bodily injury to any person other than the driver.
- 6 California Vehicle Code section 23153(b) further prohibits any person from driving a
- 7 vehicle while having 0.08% or more, by weight, of alcohol in his or her blood, and
- 8 concurrently doing any such act or neglecting any such duty which act or neglect
- 9 proximately causes bodily injury to any person other than the driver.
- 10
- 11 22. At approximately 2:05 a.m. on October 18, 2025, Defendant Keeler drove and operated
- 12 an ACTD transit bus upon a public roadway in the County of Los Angeles while under the
- 13 influence of alcohol, and, as established by certified chain-of-custody blood analysis
- 14 performed on a specimen drawn approximately one hour after the collision, with a
- 15 blood-alcohol concentration of 0.14% by weight — nearly twice the statutory per se limit
- 16 of 0.08%.
- 17
- 18 23. While driving in that condition, Keeler concurrently failed to maintain a proper lookout,
- 19 failed to keep the bus within its lane, failed to maintain control of the vehicle, and lost
- 20 consciousness at the wheel, each of which constitutes an act forbidden by law or a neglect
- 21 of a duty imposed by law in the driving of a motor vehicle.
- 22
- 23 24. Plaintiff is a member of the class of persons for whose protection Vehicle Code sections
- 24 23152 and 23153 were enacted — namely, members of the traveling public exposed to the
- 25 hazards of intoxicated drivers — and the injuries suffered by Plaintiff are of the type those
- 26 statutes were enacted to prevent. Keeler's violation of Vehicle Code section 23153
- 27 therefore establishes negligence per se pursuant to Evidence Code section 669.
- 28

25. As a direct and proximate result of Keeler's violation of Vehicle Code section 23153 and the negligence per se arising therefrom, Plaintiff suffered the injuries and damages set forth in paragraphs 14 and 15 above, in amounts to be proven at trial.

THIRD CAUSE OF ACTION

Vicarious Liability — Respondeat Superior (Gov. Code § 815.2)

(Against Defendant ALDER CREEK TRANSIT DISTRICT and DOES 1–50)

26. Plaintiff incorporates by reference each and every allegation contained in paragraphs 1 through 25 above as though fully set forth herein.

27. Government Code section 815.2(a) provides that a public entity is liable for injury proximately caused by an act or omission of an employee of the public entity within the scope of his employment if the act or omission would, apart from this section, have given rise to a cause of action against that employee.

28. At all times relevant hereto, Defendant Keeler was an employee of Defendant ACTD within the meaning of Government Code sections 810.2 and 811.4. On October 18, 2025, at the time of the acts and omissions alleged herein, Keeler was operating ACTD Bus No. 4177 on ACTD's authorized Owl Route 512, in accordance with ACTD's published run schedule and duty roster, transporting fare-paying passengers during ACTD's authorized 23:00–05:00 overnight service window. Keeler was performing the duties for which ACTD had employed him and was, in every respect, acting within the course and scope of his employment with ACTD.

29. The acts and omissions of Keeler alleged in the First and Second Causes of Action would, apart from Government Code section 815.2, have given rise, and do give rise, to causes of action against Keeler under the general and negligence per se theories pleaded

above.

30. Pursuant to Government Code section 815.2(a), Defendant ACTD is vicariously liable to Plaintiff for the injuries and damages proximately caused by Keeler's negligent and unlawful acts and omissions committed within the course and scope of his employment with ACTD.

31. As a direct and proximate result of the acts and omissions for which ACTD is vicariously liable under Government Code section 815.2, Plaintiff suffered the injuries and damages set forth in paragraphs 14 and 15 above, in amounts to be proven at trial.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff YOLANDA REYES prays for judgment against Defendants ALDER CREEK TRANSIT DISTRICT, RAYMOND T. KEELER, and DOES 1 through 50, and each of them, as follows:

1. For general damages for past and future physical pain, mental suffering, emotional distress, loss of enjoyment of life, and permanent physical impairment, according to proof;
2. For special damages, including past and future medical, hospital, rehabilitative, attendant-care, and related expenses, according to proof;
3. For past and future loss of earnings, and for loss of earning capacity, according to proof;
4. For prejudgment interest as allowed by law;
5. For costs of suit incurred herein; and

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2 6. For such other and further relief as the Court deems just and proper.
3

4 **DEMAND FOR JURY TRIAL**
5

6 Plaintiff hereby demands trial by jury of all issues so triable.
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9 Dated: May 20, 2026

HALSTEAD & CRUZ LLP

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13 By: /s/ Nora Halstead
14 Nora Halstead (SBN 369314)

15 Attorneys for Plaintiff YOLANDA REYES
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PROOF OF SERVICE

(Code Civ. Proc. §§ 1013a, 2015.5)

STATE OF CALIFORNIA, COUNTY OF LOS ANGELES

I am employed in the County of Los Angeles, State of California. I am over the age of 18 and not a party to the within action. My business address is 88 South Grand Avenue, Suite 2400, Los Angeles, California 90071.

On May 22, 2026, I served the foregoing document(s) described as:

COMPLAINT FOR DAMAGES; SUMMONS; CIVIL CASE COVER SHEET;
NOTICE OF CASE ASSIGNMENT; DEMAND FOR JURY TRIAL

on the following party in this action by personal delivery of a true and correct copy thereof to the office of the person designated by statute to accept service on behalf of the following public entity:

ALDER CREEK TRANSIT DISTRICT
c/o Clerk of the Board / Designated Agent for Service
1200 Alder Creek Way
Rivergate, California 91766

By Personal Service. I caused such envelope(s) to be delivered by hand to the offices of the addressee(s) listed above at the address(es) shown above.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct. Executed on May 22, 2026, at Los Angeles, California.

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Grace Chen
Halstead & Cruz LLP